

BANK OF AMERICA, N.A. v LUCY GARCIA

19CF12836

DEFENDANT'S CLAIM OF EXEMPTION

On June 15, 2019, judgment creditor Bank of America ("BOA") obtained a judgment against Defendant Lucy D. Garcia ("Garcia") in the amount of \$20,525.79. After Los Angeles County withheld funds, Garcia filed a claim of exemption. BOA has filed an opposition. On October 23, 2024, the Court ordered Garcia to file a financial statement which is now before the Court.

Code of Civil Procedure section 706.050(a) states:

Except as otherwise provided in this chapter, the maximum amount of disposable earnings of an individual judgment debtor for any workweek that is subject to levy under an earnings withholding order shall not exceed the lesser of the following: (1) Twenty-five percent of the individual's disposable earnings for that week. (2) Fifty percent of the amount by which the individual's disposable earnings for that week exceed 40 times the state minimum hourly wage in effect at the time the earnings are payable.

Garcia asserts that funds are exempt pursuant to Code Civil Procedure sections 704.070 (wages) and 704.110 (death benefits). In her more detailed financial statement, Garcia identifies that funds in her bank accounts are either long term disability payments, or death benefits her mother received from her spouse's death.

Garcia states that her monthly pay is \$2005.20 and that this is entirely from social security disability payments. The only other household income is her husband's social security disability payments. Garcia does not identify any other source of income.

Pursuant to 42 U.S.C. § 407(a), social security benefits are exempt from garnishment, except as authorized for attachment by the federal government.

Accordingly, Defendant's claim of exemption is **GRANTED**. There is no income which Los Angeles County can attach.

The Clerk shall provide notice of the Ruling forthwith. Defendant to submit a formal Order pursuant to CRC 1.1312 in conformity with this Ruling.

GRAHAM v CHANCE, et al.

23CV46928

DEFENDANT'S MOTION FOR LEAVE TO FILE CROSS-COMPLAINT

On September 11, 2023, Plaintiff Amber Graham ("Plaintiff") filed her complaint against Defendants Pure Aloha ("Aloha"), Steven J. Chance ("Chance"), and Sarah M. Barry ("Barry"). Plaintiff's complaint alleges various employment discrimination and harassment arising out of a physical assault that she alleges she suffered while an employee of Aloha.

Now before the Court is Defendants' motion for leave to file a cross-complaint and for costs/sanctions against Plaintiff. As set forth below, the motion for leave is granted but the motion for costs/sanctions is denied.

I. Factual and Procedural Background

In or around January 2022, Aloha hired Plaintiff as a sale associate and shortly thereafter promoted Plaintiff to manager. (Complaint ¶ 12.) Barry and Chance are allegedly the co-owners or directors of Aloha. (*Id.* ¶ 5.) In October 2022, Plaintiff was accused of using a derogatory term towards an African-American co-worker, which plaintiff denies. (*Id.* ¶ 14.) On October 17, 2022, Barry wrote Plaintiff up related to the allegations against her but refused to discuss the matter with Plaintiff. (*Id.* ¶ 15.) Plaintiff was not terminated but was instructed to leave the premises for the remainder of the day. (*Id.* ¶ 16.)

As Plaintiff was leaving work on that day as requested by Barry, she asked to retrieve some of her personal belongings from the back. (*Id.* ¶ 16.) Barry acquiesced and Plaintiff retrieved her personal notebook, her bag, and her personal houseplant. (*Id.* ¶ 16.) Barry then accused Plaintiff of taking a notebook that had information related to Aloha and attempted to block Plaintiff from leaving the premises. (*Id.* ¶ 17.) At this time, Chance (who is also Barry's boyfriend) placed Plaintiff in a chokehold and threw her to the ground. (*Id.* ¶ 18.) Plaintiff suffered significant injuries including a broken nose and a concussion. (*Id.* ¶ 20.) The next day, Plaintiff received a termination notice from Aloha signed by Barry citing the allegation of a racial slur and that Plaintiff had refused to take part in an investigation. (*Id.* ¶ 21.)